

Customer Consent Compliance Guide

TCPA · CAN-SPAM · GDPR · CASL — Required Practices for Review-Request Outreach

Why This Matters

Before you send a single review request — by email, SMS, or any other channel — your customers must have explicitly consented to receive marketing communications from your business. Failing to obtain proper consent exposes you to fines under the Telephone Consumer Protection Act (TCPA), the CAN-SPAM Act, the General Data Protection Regulation (GDPR), and Canada's Anti-Spam Legislation (CASL). This guide explains exactly what you need to do and provides ready-to-use consent language.

Get Phame enforces consent collection at every point of contact — in your website forms, WooCommerce checkout, social media lead forms, and inside the Get Phame app itself.

Section 1 — The Required Consent Checkbox

Every form that collects a customer's name, email address, or phone number must include an **unchecked** consent checkbox with clear disclosure language. The checkbox must be:

- Unchecked by default — the customer must actively opt in
- Clearly labeled with the name of your business
- Placed near the submit button, not buried in fine print
- Stored with a timestamp so you can prove consent was given

Recommended Consent Language

Use this exact wording (replace **[Your Business Name]** with your actual business name):

■ *I agree that **[Your Business Name]** may contact me by email and/or text message about my experience and purchases. I understand I can unsubscribe at any time.*

For SMS / text message consent, add:

■ *I agree to receive text messages from **[Your Business Name]**. Message and data rates may apply. Reply **STOP** to unsubscribe, **HELP** for help.*

Section 2 — Required Unsubscribe Mechanisms

2a. Every Email Must Include an Unsubscribe Link

All outbound emails — including review requests, follow-up reminders, and promotional messages — must include a clearly visible unsubscribe link. Get Phame automatically appends this link to every email it sends on your behalf.

*Required footer text: "You received this email because you are a customer of **[Business Name]**. To stop receiving emails, unsubscribe here."*

2b. Every SMS Must Include an Opt-Out Instruction

Every text message must include opt-out instructions in the message body. Get Phame appends this automatically when SMS is enabled.

"Reply STOP to unsubscribe, HELP for help. Msg & data rates may apply."

2c. Honor Opt-Outs Immediately

When a customer unsubscribes, you must stop all outreach within 10 business days (CAN-SPAM) or immediately (TCPA/GDPR). Get Phame marks contacts as unsubscribed automatically when they click the unsubscribe link.

Section 3 — Where to Add the Consent Checkbox

The consent checkbox is required on **every form** where you collect customer contact information. This includes all of the following:

3a. Website Contact & Inquiry Forms

Any form on your website that collects name, email, or phone — contact forms, quote request forms, appointment booking forms, newsletter signups — must include the consent checkbox.

3b. WooCommerce / E-Commerce Checkout

Add the consent checkbox to your WooCommerce checkout page. This is the most important location because it is where the majority of your customer contact data is collected.

WooCommerce snippet (add to functions.php or a custom plugin):

```
add_action('woocommerce_review_order_before_submit', function() { echo ' I agree that [Business Name] may contact me by email/text about my purchase.'; });
```

3c. In-Person / Point-of-Sale Collection

If you collect customer contact information at a physical location (paper form, tablet, POS system), the consent language must appear on the form or screen before the customer submits their information.

3d. Get Phame App — Add Contact Form

When you manually add a contact inside Get Phame, you will see a consent confirmation checkbox. You must check this box to confirm that the customer has already given consent through one of the channels above. Do not add contacts who have not consented.

3e. Social Media Lead Forms

This section is critical. Social media platforms — including Facebook, Instagram, LinkedIn, and TikTok — offer native lead generation forms that collect customer contact information directly inside the platform. These forms are subject to the same consent requirements as any other form.

The consent checkbox requirement applies to ALL social media lead forms without exception.

Platform	Form Type	Where to Add Consent Language
Facebook	Lead Ads (Instant Forms)	Add a Custom Disclaimer question. Set it as required.
Instagram	Lead Ads (via Facebook Ads Manager)	Same as Facebook — add a Custom Disclaimer in the form builder.

LinkedIn	Lead Gen Forms	Add a Custom Checkbox field with your consent text. Mark required.
TikTok	Lead Generation Ads	Use the Custom Question field (checkbox type). Mark required.
Pinterest	Lead Ads	Add a Disclosure field with your consent language.

How to add consent to a Facebook / Instagram Lead Ad:

1. Open Facebook Ads Manager and create or edit a Lead Ad.
2. In the Instant Form builder, scroll to the Questions section.
3. Click 'Add Question' and select 'Custom Disclaimer'.
4. Paste your consent text: "I agree that [Business Name] may contact me by email and/or text about my experience and purchases. I can unsubscribe at any time."
5. Check the 'Required' box so the customer must accept before submitting.
6. Save and publish the form.

Important: Facebook's own privacy policy is NOT a substitute for your business's consent checkbox. You must add your own consent language that specifically names your business and describes how you will use the customer's contact information.

Your social media lead forms must also link to your business's Privacy Policy. Facebook, LinkedIn, and TikTok require a privacy policy URL in the form settings.

Section 4 — Record Keeping

You must be able to prove that consent was obtained. Keep records of:

- The date and time the customer submitted the form
- The form or page where consent was collected
- The exact consent language shown to the customer
- The customer's IP address (for web forms)

Get Phame stores the consent timestamp and source automatically when contacts are added through the app. For contacts imported from external sources, retain your own records.

Section 5 — Quick Compliance Checklist

- **Website forms:** Consent checkbox added to all contact/inquiry/booking forms
- **WooCommerce checkout:** Consent checkbox added to checkout page
- **Social media lead forms:** Custom Disclaimer / consent checkbox added to ALL Facebook, Instagram, LinkedIn, TikTok, and Pinterest lead forms
- **In-person collection:** Consent language on paper/tablet forms
- **Get Phame app:** Only adding contacts who have already consented
- **Email footer:** Unsubscribe link in every outbound email (Get Phame handles this automatically)
- **SMS footer:** STOP opt-out instruction in every text message
- **Privacy Policy:** Published and linked from all forms including social media lead forms
- **Record keeping:** Consent timestamps stored for all contacts

This guide is provided for informational purposes only and does not constitute legal advice. Consult a qualified attorney for advice specific to your business and jurisdiction.

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